APPROVED ON OCTOBER 7, 2026
BY THE BOARD OF COUNTY COMMISSIONERS
AT THE WEEKLY BUSINESS SESSION

Executive Session: September 29, 2026
11:00 a.m. - Board of Commissioners Conference Room

Attending: Commissioners Ron A. Smith; Colene M. Martin; Gary L. Richardson; and Nikole Guzman, Recorder

Chair Ron A. Smith called the meeting to order at 11:06 a.m.

1. **OPEN SESSION**
    a. **Stephen Eric Fitch v Josephine County, et al; District Court Case 1-26-cv-01406.**

Chair Smith identified the pending Stephen Eric Fitch litigation as the subject of the meeting and announced that the Board would convene in Executive Session to consult with counsel. He stated that accredited news-media representatives and designated staff could attend, that the media were directed not to disclose the confidential discussion beyond the announced general subject, and that no decisions would be made in Executive Session.

2. **EXECUTIVE SESSION**
    a. **Stephen Eric Fitch v Josephine County, et al; District Court Case 1-26-cv-01406.**

Chair Smith convened the Executive Session at 11:08 a.m. Recording devices were turned off. Confidential discussion is summarized below.

Additional Attendees: Wally Hicks, Legal Counsel; Thomas Gray, Public Information Officer and Records Management Officer; Grant Stockton and Rachel Burns, attorneys assigned by CIS (via Zoom); and Chrissy Ewald, Daily Courier.

Executive Session concluded at 11:52 a.m.

3. **OPEN SESSION CON'D**
    a. **Stephen Eric Fitch v Josephine County, et al; District Court Case 1-26-cv-01406.**

The Board reconvened in Open Session at 11:52 a.m. Chair Smith reported that the Board had received an update from the attorneys concerning Stephen Eric Fitch v. Josephine County, et al., District Court Case No. 1-26-cv-01406. No motions were made and no decisions were announced. The meeting adjourned at 11:53 a.m.